

DECLARATION OF COVENANTS, CONDITIONS & RESTRICTIONS

Instrument No.: 2008-045678 Recorded: November 3, 2008

Harris County, Texas

FOR DEMONSTRATION ONLY — SYNTHETIC RECORDED INSTRUMENT.

PARTIES

Declarant: Harbourview Developer LLC

Owner: Harbourview Holdings LLC

USE RESTRICTIONS

The Property shall be used solely for commercial and office purposes. No residential use is permitted.

No hazardous or regulated materials shall be stored, disposed of, or released on the Property except in compliance with applicable law.

ARCHITECTURAL CONTROL

No exterior alteration, signage change, or material modification to Improvements shall be made without prior written approval of the Architectural Committee.

Approval may be withheld in the Committee's sole discretion to maintain a consistent aesthetic and site plan.

PARKING AND ACCESS

Owners shall maintain the parking areas in good order and shall not materially reduce the number of parking spaces serving the Improvements.

Ingress and egress shall be maintained as shown on the recorded plat and any reciprocal easement agreements.

PROHIBITED USES

No adult entertainment establishment shall be operated on the Property.

No nuisance use that materially interferes with neighbouring parcels is permitted.